

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/17/26 TIME: 1:30 P.M. DEPT: D CASE NO: CV0000662

PRESIDING: HON. ANDREW E. SWEET

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: GRAHAM GRONEMAN, ET AL	
vs.	
DEFENDANT: CALIFORNIA COASTAL COMMISSION	

NATURE OF PROCEEDINGS: MOTION – RECONSIDERATION

RULING

Petitioners Graham Groneman and Brett Sibley’s (“Petitioners”) motion for reconsideration is **DENIED**.

BACKGROUND

The Coastal Act of 1976 is a “comprehensive scheme to govern land use planning for the entire coastal zone of California” that focuses on balancing coastal development with the need to protect the coastal zone as a natural resource. (*Yost v. Thomas* (1984) 36 Cal.3d 561, 565; Pub. Res. Code, § 30001.) Under the Coastal Act, each local government lying within the state’s coastal zone is required to prepare a local coastal program, or LCP, for the portion of the coastal zone falling within its jurisdiction. (Pub. Res. Code, § 30500.) A locality’s LCP implements the Coastal Act at the local level. (Pub. Res. Code, § 30108.6.) Each local government must submit its LCP to the Commission for certification. (Pub. Res. Code, § 30512.) After an LCP is certified, the local government has jurisdiction over development within its coastal zone and the authority to issue permits for such development, known as coastal development permits (“CDPs”). (Pub. Res. Code, §§ 30519, subd. (a); 30600, subd. (d); 30101.5.) Any two members of the Commission can initiate an appeal of a local government body’s action on a CDP. (Pub. Res. Code, § 30625, subd. (a).)

This case is a dispute between a married couple and the Commission over the couple’s plans to build an oceanfront home. Petitioners own an unimproved parcel of land overlooking the ocean on Sunset Way in Muir Beach. (Amended Petition, ¶¶ 1-4.) The County of Marin granted Petitioners a CDP permitting them to build a new home on the property. (*Id.* at ¶ 9.) The Commission initiated an appeal of Petitioners’ CDP. (AR0142.) It heard the appeal on February 10, 2023. (AR2262.) The Commission ultimately approved the CDP, but imposed

numerous conditions on the project. (*Ibid.*) Petitioners, contending that the Commission exceeded its jurisdiction by hearing the appeal at all and that several of the conditions it imposed on the CDP are unlawful, filed this action to seek a writ of administrative mandamus and other relief.¹

The Court ruled on Petitioners' motion for judgment on the writ claims on July 23, 2025. It granted the motion in part, ruling that a writ shall issue directing the Commission to set aside its decision as to two of the conditions it imposed on the project, Special Conditions 3(b) and 3(e). (Order, p. 1.) It denied the motion in all other respects. (*Ibid.*)

Before the Court is Petitioners' motion for reconsideration of its July 23, 2025 ruling based on the Supreme Court's subsequent decision in *Shear Development Co., LLC v. California Coastal Commission* (2026) 19 Cal.5th 334 (as modified) ("*Shear*").²

LEGAL STANDARD

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a).) The motion must be "based upon new or different facts, circumstances, or law" and must be filed "within 10 days after service upon the [movant] of written notice of entry of the order[.]" (*Ibid.*) It must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*) "The party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time." (*Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1457.)

"[B]ecause the requirements of section 1008 are jurisdictional with respect to applications by civil parties litigant for reconsideration of previous orders or renewing previously denied motions, any action by the trial court on such an application not in compliance with the dictates of section 1008 would be in excess of its jurisdiction." (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 394, fn. 22.)

DISCUSSION

Petitioners concede that their motion does not meet the requirements of Code of Civil Procedure, section 1008, subdivision (a). However, that provision "do[es] not limit a *court's* ability to reconsider its previous interim orders on its own motion, as long as it gives the parties notice that it may do so and a reasonable opportunity to litigate the question." (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1096 [emphasis in original].) Even where a litigant cannot satisfy the requirements of Section 1008(a), the litigant may suggest to a court that it move sua sponte to

¹ The petition includes a cause of action for unconstitutional taking. The Court ordered that cause of action bifurcated and directed that the writ causes of action be tried first. (See March 27, 2024 Order.)

² Petitioners' request that the Court judicially notice the slip opinion copy of *Shear* is denied because that opinion has been superseded by the as-modified version. The Court will apply the as-modified, published version of *Shear*. The Commission's requests for judicial notice are granted. (Evid. Code, § 452, subd. (d); see also *Travis v. Brand* (2023) 91 Cal.App.5th 996, 1013 [judicially noticing a transcript of an oral argument as a court record].)

reconsider a prior interim order. (*Id.* at p. 1108.) Should that suggestion take the form of a written motion, the motion does not have “procedural significance” – that is, a court commits no error by refusing to reconsider its prior ruling, regardless of the circumstances, or by neglecting to acknowledge the motion at all. (*Ibid.*) A written motion suggesting that the court reconsider a prior ruling on its own motion is “impermissible” and so should be denied, but nothing prevents a court from denying the motion and then reconsidering the ruling on its own motion. (*Id.* at p. 1109; see also *In re Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1303 [“the trial court’s inherent authority to correct its errors applies even when the trial court was prompted to reconsider its prior ruling by a motion filed in violation of section 1008”].) Accordingly, the Court DENIES the motion.

The Court will not sua sponte move to reconsider its July 23, 2025 order in light of *Shear*. Petitioners' argument that *Shear* changes the outcome relies on a misunderstanding of the Court's order.

Shear

When ruling on a petition for mandamus, a court reviews an administrative agency’s interpretations of law under the independent judgment standard, under which the court, giving a degree of deference to the agency’s interpretation as appropriate to the circumstances, independently determines the meaning of the legal authority at issue. (See *Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 7-8; Asimow et al., Cal. Practice Guide: Administrative Law (The Rutter Group 2025) ¶ 17:20.) A court does not automatically defer to an agency’s interpretation of the law when applying the independent judgment standard. (*Shear, supra*, 19 Cal.5th 334; see also *Yamaha, supra*, 19 Cal.4th 1, 12 [“Whether judicial deference to an agency’s interpretation is appropriate and, if so, its extent – the ‘weight’ it should be given – is . . . fundamentally *situational*.”] [emphasis in original].) The degree of deference to be given to the agency’s interpretation, if any, is determined by reference to factors the Supreme Court set forth in *Yamaha, supra*, 19 Cal.4th 1.

Under *Yamaha*, “[t]here are ‘two broad categories of factors relevant to a court’s assessment of the weight due an agency’s interpretation[.]’” (*Shear, supra*, 19 Cal.5th 334, 353 [quoting *Yamaha, supra*, 19 Cal.4th 1, 12].) The first category consists of factors “ ‘ “indicating that the agency has a comparative interpretive advantage over the courts[.]” ’ ” (*Ibid.*) These factors “include whether (1) the agency has relevant ‘expertise and technical knowledge’; (2) ‘the legal text to be interpreted is technical, obscure, complex, open-ended, or entwined with issues of fact, policy, and discretion’; and (3) the agency authored and enforces the language in dispute.” (*Ibid.*) The second *Yamaha* category consists of factors “ ‘ “indicating that the interpretation in question is probably correct.” ’ ” (*Ibid.*) These factors “include: (1) ‘indications of careful consideration by senior agency officials’ such as ‘ “an interpretation of a statute contained in a regulation adopted after public notice and comment” ’; (2) ‘evidence that the agency “has consistently maintained the interpretation in question, especially if [it] is long-standing” ’; and (3) ‘indications that the agency’s interpretation was contemporaneous with legislative enactment of the statute being interpreted.’ ” (*Shear, supra*, 19 Cal.5th 334, 356 [quoting *Yamaha, supra*, 19 Cal.4th 1, 13].)

In *Shear*, the Supreme Court, explaining that an LCP is “enacted law[.]” made clear that the independent judgment standard applies where a petitioner contends that the Commission misinterpreted a provision of an LCP. (*Shear, supra*, 19 Cal.5th 334, 349-350.) *Shear* also held that “[w]hen multiple agencies that administer a statute have provided conflicting interpretations, a court should apply the *Yamaha* factors to each agency to determine not only whether either would be entitled to deference, but also whether either has a *stronger* claim to deference than the other. If one agency is better situated than the other to provide a definitive statutory interpretation to which a court should defer, then the court may assign greater weight to that agency’s interpretation. If not, and the agencies offer incompatible interpretations, then the court should perform its interpretive task without deference to either agency.” (*Id.* at p. 352.)

The “Bluff Edge” Issue

After a local government’s LCP is certified, the local government body’s action on a CDP may be appealed to the Commission only based on “an allegation that the development does not conform to the standards set forth in the certified local coastal program or the public access policies set forth in [the Coastal Act].” (Pub. Res. Code, § 30603, subds. (a), (b)(1); Cal. Code Regs., tit. 14, § 13115, subd. (b); see also *Kaczorowski v. Mendocino County Board of Supervisors* (2001) 88 Cal.App.4th 564, 569.) The Commission “shall” hear the appeal unless it determines “that no substantial issue exists with respect to the grounds on which an appeal has been filed[.]” (Pub. Res. Code, § 30625, subd. (b)(2).) “If the Commission determines that an appeal presents a ‘substantial issue,’ the permit application is reviewed de novo; in effect, the Commission hears the application as if no local government unit was previously involved, deciding for itself whether the proposed project satisfies legal standards and requirements.” (*Kaczorowski, supra*, 88 Cal.App.4th 564, 569.)

The Marin LCP requires that new structures “shall be set back from the Bolinas and Mir [sic] Beach bluffs a sufficient distance to ensure with reasonable certainty that they are not threatened from cliff retreat within their economic life expectancies.” (AR2314.) This means new development must be “set back from coastal blufftop edges” to protect it against bluff erosion. (AR0107.)

At the de novo stage of the appeal, the Commission determined that “the blufftop edge is at the inland edge of the site” where Petitioners were requesting permission to build their house. (AR0916.) Per the Commission, because “essentially the entire property lies seaward of the blufftop edge,” it is “impossible for the proposed development to meet the LCP’s bluff setback requirements, and therefore the proposed project is inconsistent with the LCP.” (AR0916 [de novo stage staff report]; see also AR2247-2249 [Commission voting to adopt staff recommendation as described in that report].) Petitioners challenged this finding, contending that it relied on a baseless definition of “bluff edge.” (Memorandum, p. 12.)

Petitioners admit that the Court applied the independent judgment standard, not the substantial evidence standard, when addressing this issue in its July 23, 2025 order. (Reconsideration Memorandum, p. 3.) They argue, however, that the Court deferred to the Commission’s interpretation of the Marin LCP’s definition of the term “bluff edge” without doing the comparative *Yamaha* analysis *Shear* requires, and so must reconsider its decision in light of *Shear*.

Petitioners have incorrectly interpreted the Court's boilerplate recitation of the independent judgment standard in the Legal Standard section of its July 23 order as a statement that the Court deferred to a Commission interpretation of the Marin LCP in this case. (See Order, p. 3; Memorandum, p. 3.) The Court gave no deference to anyone's interpretation of the Marin LCP. It did not have occasion to do so.

Petitioners' primary argument on the bluff edge issue was that the Commission applied a particular Commission-drafted definition of the term "coastal bluff" when determining the location of the "bluff edge" at the property and thereby engaged in an illegitimate exercise of legislative power. (Original Memorandum, p. 12; Order, pp. 13-15.) This purportedly Commission-drafted definition appeared in a "Bluff Edge Memorandum" authored by Commission staff geologist Dr. Joseph Street. (Original Memorandum, pp. 11-12; AR0993-AR0994.) Petitioners explained that in the Bluff Edge Memorandum, Dr. Street "note[d]" the way " 'the Commission defines a coastal bluff[.]' " (*Id.* at p. 12 [quoting AR0992].) Petitioners emphasized that, per Dr. Street, " 'the Commission defines coastal bluff . . . based [in part] on a landform's proximity to the coast and/or to important coastal resources.' " (*Ibid.*) They pointed out that the Marin LCP's definition of "bluff edge" "includes none of the additional information Dr. Street incorporates into his definition of bluff, a definition the [Commission] credited in their ultimate decision that the proposed development was sited on a bluff face or that it should remain as open space." (*Id.* at p. 12.) Petitioners relied on *Schneider v. California Coastal Com.* (2006) 140 Cal.App.4th 1339, which emphasizes that "the Coastal Commission is not empowered to legislate[.]" (140 Cal.App.4th 1339, 1343.)

The Court's disposition of this argument did not interpret the meaning of any legal definition of any term, let alone defer to any interpretation of a definition. Instead, the Court concluded that there was no basis to believe that the Commission, when deciding Petitioners' appeal, actually applied the "coastal bluff" definition Petitioners were challenging:

"[T]he Court, having read the Bluff Edge Memorandum and the relevant sections of the de novo staff report in full and reviewed all of Petitioners' citations to the hearing transcript on this issue, does not see any indication that Dr. Street or the Commission actually applied 'the Commission's definition' of this term (or any other) when determining the location of the bluff edge in this case. As shown above, the language [from Dr. Street] that Petitioner identifies [as problematic and indicative of impermissible legislating] relates to the definition of 'coastal bluff.' No one explains how, if at all, the definition of that term bears on the definition of the separate term 'bluff edge,' and *that* is the definition the parties to this case are disputing. Dr. Street arrived at his determination of the location of Petitioner's bluff edge by reference to the language of Section 13577(h)'s and the Marin LCP's definitions of 'bluff edge.' (AR0994-AR0995; AR2177.) The Court cannot identify any connection between 'the Commission's definition' of 'coastal bluff' and the Commission's determination of the location of the 'bluff edge' within Petitioners' property."

(Order, p. 15.) For the Commission's conduct on this point to harm Petitioners, the Commission would have had to actually use the contested definition when deciding Petitioners' appeal. Finding no indication that the Commission did that, the Court disposed of the bluff edge issue by

concluding that Petitioners were not prejudiced by what they framed as the Commission's improper legislative activity.³ (Order, p. 15.) The Court thus had no occasion to apply *Yamaha*. Had *Shear* been decided prior to the Court's ruling, there would have been no role for it to play.

³ In its opposition to the motion for reconsideration, the Commission states that in its July 23, 2025 order, "*the Court* accused the Commission of 'applying made-up definitions' before ultimately concluding that any error the Commission made with regards to the definition fell short of prejudicial abuse of discretion." (See Opposition, p. 9 [quoting Order, p. 15] [emphasis added].) To be clear, the Court did not hold that the Commission somehow applied made-up law in a nonprejudicial manner. The basis for the Court's ruling in favor of the Commission on this issue was that the Commission *did not apply* the contested definition. The portion of the order the Commission is citing here merely acknowledges that "applying made-up definitions of critical terms would qualify" as "abuse of discretion" if it occurred. (Order, p. 15 [citing Code Civ. Proc., § 1094.5, subd. (b)].)